

(5) An order under this section may be made so as to apply generally to all urban district councils or all rural district councils, or so as to apply only to the council or councils specified therein, and the provisions of any order made under this section and for the time being in force shall have effect as if enacted in this Act, but may be varied or revoked by any subsequent order made under this section.

(6) Any acts done or arrangements made by the Local Government Board, or by any local authority or officer with the sanction of that Board, after the first day of January nineteen hundred and seventeen, and before the passing of this Act, shall be as valid and effectual as if done or made after the passing of this Act and under the authority of this Act or of an order under this Act.

- 2.--(1) In this Act, unless the context otherwise requires,— Interpreta-
tion, extent,
and short
title.
- The expression "Local Government Board" means the Local Government Board for Ireland ;
- The expression "small holding" means a holding not exceeding ten pounds in rateable value ; and
- The expression "labourer's plot" means a plot provided under the Labourers (Ireland) Acts, 1883 to 1914, whether with or without a cottage.

(2) This Act shall apply to Ireland only, and may be cited as the Local Government (Allotments and Land Cultivation) (Ireland) Act, 1917.

CHAPTER 31.

An Act to grant certain duties of Customs and Inland Revenue (including Excise), to alter other duties, and to amend the Law relating to Customs and Inland Revenue (including Excise) and the National Debt, and to make further provision in connection with Finance.

[2nd August 1917.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties hereinafter mentioned ; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

CUSTOMS AND EXCISE.

Continuance
of Customs
duties imposed
under 5 & 6
Geo. 5. c. 89.

1. The following duties of Customs, imposed by Part I. of the Finance (No. 2) Act, 1915, shall continue to be charged, levied, and paid until the first day of August nineteen hundred and eighteen, that is to say:—

Duty.	Section of Act.
Increased duty on tea - - - - -	1
Additional duties on dried fruit - - - - -	8
Additional duty on motor spirit - - - - -	10 (1)
New import duties - - - - -	12

Continuance
of Excise
duties imposed
under 5 & 6
Geo. 5. c. 89.

2. The following duties of Excise, imposed by Part I. of the Finance (No. 2) Act, 1915, shall continue to be charged, levied, and paid until the first day of August nineteen hundred and eighteen, that is to say:—

Duty.	Section of Act.
Additional duty on motor spirit - - - - -	10 (2)
Additional medicine duties - - - - -	11

Increase of
entertain-
ments duty.
6 Geo. 5. c. 11.

3. On and after the first day of October nineteen hundred and seventeen section one of the Finance (New Duties) Act, 1916, shall have effect as if the following scale of rates of entertainments duty were substituted for the scale set forth in that section—

Where the payment, excluding the amount of the duty—

does not exceed 2 <i>d.</i> —	a halfpenny.
exceeds 2 <i>d.</i> and does not exceed 4 <i>d.</i> —	one penny.
„ 4 <i>d.</i> „ „ 6 <i>d.</i> —	twopence.
„ 6 <i>d.</i> „ „ 1 <i>s.</i> —	threepence.
„ 1 <i>s.</i> „ „ 2 <i>s.</i> —	fourpence.
„ 2 <i>s.</i> „ „ 3 <i>s.</i> —	sixpence.
„ 3 <i>s.</i> „ „ 5 <i>s.</i> —	ninepence.
„ 5 <i>s.</i> „ „ 7 <i>s.</i> 6 <i>d.</i> —	one shilling.
„ 7 <i>s.</i> 6 <i>d.</i> „ „ 10 <i>s.</i> 6 <i>d.</i> —	one shilling and sixpence.
„ 10 <i>s.</i> 6 <i>d.</i> „ „ 15 <i>s.</i> —	two shillings.
„ 15 <i>s.</i> —two shillings for the first 15 <i>s.</i> and sixpence for every 5 <i>s.</i> or part of 5 <i>s.</i> over fifteen shillings.	

Continuance
of additional
duties on
tobacco at
double rate.

4.—(1) The additional duties of Customs payable under Part I. of the Finance (No. 2) Act, 1915, on tobacco imported into Great Britain or Ireland, shall, as from the third day of May nineteen hundred and seventeen, be doubled, and shall continue to be charged levied and paid at the double rate until

the sixteenth day of July nineteen hundred and seventeen, and as from the last-mentioned date the said additional duties instead of being charged at the double rate shall be increased by fifty per cent. and shall continue to be charged levied and paid at that increased rate until the first day of August nineteen hundred and eighteen.

(2) The additional duties of Excise payable under Part I. of the Finance (No. 2) Act, 1915, on tobacco grown in Great Britain or Ireland, shall, as from the third day of May nineteen hundred and seventeen, be doubled, and shall continue to be charged levied and paid at the double rate until the sixteenth day of July nineteen hundred and seventeen, and as from the last-mentioned date the said additional duties instead of being charged at the double rate shall be increased by fifty per cent. and shall continue to be charged levied and paid at that increased rate until the first day of August nineteen hundred and eighteen.

(3) Subsection (3) of section eighty-three of the Finance (1909-10) Act, 1910, and any other enactment relating to drawback on tobacco, shall have effect as if the rates set out in Part I. and Part II. of the First Schedule to this Act were respectively substituted for the rates set out in Part III. of the Second Schedule to the Finance (No. 2) Act, 1915, in cases where it is shown that additional duty has been paid at the double rate imposed by this section or the increased rate imposed by this section, as the case may be.

5. It is hereby declared that the repeal by section eighteen of the Finance (No. 2) Act, 1915, of section two of the Finance Act, 1912 (which related to the distribution of payments on account of liquor licence duties in certain cases), operates and has always operated so as to extinguish any liability to make payments in pursuance of the said section two after the date of the repeal, whether or not the liability existed before the date of the repeal:

Effect of
repeal of s. 2
of 2 & 3 Geo. 5,
c. 8. by
5 & 6 Geo. 5,
c. 89.

Provided that nothing in this section shall affect the validity of any payments actually made between the date of the repeal and the date of the passing of this Act.

6. The provisions of section forty-two of the Customs Consolidation Act, 1876, relating to tobacco, and section one hundred and sixty-three of that Act, as respectively amended by section five of the Finance Act, 1896, shall have effect as if the words "weighing not less than eighty pounds gross" "weight or such less weight as the Commissioners of Customs" and Excise (subject to such conditions, if any, as they think "fit to impose) may permit" were therein inserted in substitution for the words "of the gross weight of not less than " eighty pounds."

Power to
reduce mini-
mum weight
of packages
of imported
tobacco.
39 & 40 Vict.
c. 36.
59 & 60 Vict.
c. 28.

7.—(1) In order to give relief in respect of the restriction of business caused by the Intoxicating Liquor (Output and Delivery) Order, 1917, the holder of an excise liquor licence,

Reduction of
licence duty in
respect of the
restriction on

the output and
delivery of
intoxicating
liquor

being one of the licences specified in the Second Schedule to this Act, shall be entitled to obtain, on the expiration of the licence, repayment in respect of the duty paid by him for the licence at the rate of one-sixteenth part of the duty for a full year for every month or part of a month during which the said order has been in force and the licence has been current, but repayment shall not in any case exceed three-fourths of the duty paid for the licence.

(2) The provisions of this section shall have effect as from and after the thirty-first day of March nineteen hundred and seventeen, and as regards any excise liquor licence to which this section applies, but, subject always to the right of the holder of any such licence to a proportionate repayment or rebate in respect of the period ending on the said thirty-first day of March, the provisions of section nine of the Finance Act, 1914 (Session 2), section six of the Finance Act, 1915, and section seventeen of the Finance (No. 2) Act, 1915, shall cease to have effect.

5 Geo. 5, c. 7.
5 & 6 Geo. 5,
c. 62.

Relief from
duty on liquor
licences where
business
cannot be
carried on.

8.—(1) Where the holder of any wholesale dealer's or retailer's licence taken out under Part II. of the Finance (1909-10) Act, 1910, satisfies the Commissioners of Customs and Excise that by reason of the licensed premises having been destroyed or seriously damaged, or by reason of any prohibition or restriction imposed by or under the authority of any enactment or regulation in connection with the present war, the business for the purpose of which or in connection with which the licence was granted has been discontinued, he shall, on making application to the Commissioners within one month after the discontinuance or within such longer period as the Commissioners may in any special case allow, be entitled to obtain repayment, or, so far as the duty has not been paid, remission, of such part of the duty for the year as bears to the full amount of that duty the same proportion as the period during which the business is not carried on, or the part thereof falling within the year, bears to a whole year.

6 & 7 Geo. 5,
c. 66.

(2) In any such case as aforesaid (but as respects any case to which section eight of the Dublin Reconstruction (Emergency Provisions) Act, 1916, applies without prejudice to the rights under that section), the excise licence, and any justices' licence on the authority of which the excise licence was granted, shall be deemed to be suspended as from the commencement of the period aforesaid; but at the expiration of that period any such justices' licence shall revive, and have effect as if it had been granted for the then current licensing year, and, if the revival takes place between the date of the general annual licensing meeting in any licensing year and the end of the year, as if it had been granted for that year and the next licensing year, or, in the case of a licence granted for a term, as if the term were extended by a period equal to the period of suspension, and the holder of an excise licence which has been so treated as suspended shall be entitled to take out an excise licence on payment

of such an amount in respect of excise duty as would have been payable by him had he been a new beginner at the expiration of that period :

Provided that if during the period for which any licence is so treated as suspended a contingency occurs upon which a transfer of the licence might have been granted but for the suspension, a transfer may be granted either---

- (a) at the time at which, and to a person to whom, a transfer might have been granted had the licence not been suspended; or
- (b) after the expiration of the period to any person to whom a transfer might have been granted had the contingency occurred immediately after the expiration of the period :

Provided also that if during the period for which any licence is so treated as suspended a person desires to make an objection on the ground of misconduct to the revival of the licence he may make such an objection in the same manner as he may make an objection to the renewal of a justices' licence, and if on any such objection being made the justices certify that had the licence not been suspended they would have refused the renewal thereof the licence shall not revive.

(3) The licence-holder before making an application under subsection (1) of this section shall give notice of his intention to the registered owner of the premises.

(4) In the application of this section to Scotland references to a justices' licence shall be construed as references to a certificate as defined in Part VII. of the Licensing (Scotland) Act, 1903, references to the date of the general annual licensing meeting shall be construed as references to the last date for lodging applications for certificates to be granted at the April half-yearly meeting of the licensing court, and references to the justices shall be construed as references to the licensing court.

(5) In the application of this section to Ireland references to a justices' licence shall be construed as references to a justices' certificate, and references to the general annual licensing meeting shall be construed as references to the annual licensing sessions.

9. Where the holder of any licence to keep a motor car granted for the year nineteen hundred and seventeen has at any time before the first day of July in the said year surrendered the licence in such manner and to such person or authority as may have been prescribed by regulations made by the Treasury, for the purpose of being cancelled, he shall be entitled to repayment of one-half of the duty paid on the licence.

Repayment of half duty on surrender of motor car licence for current year.

PART II.

INCOME TAX.

10.—(1) Income tax for the year beginning on the sixth day of April nineteen hundred and seventeen shall be charged at the

Income tax for 1917-18.

6 & 7 Geo. 5.
c. 24.

rate of five shillings, and super-tax, and the additional income tax under section twenty-seven of the Finance Act, 1916, on securities which the Treasury are willing to purchase, shall be charged, levied, and paid for that year at the same rates as those charged for the year beginning on the sixth day of April nineteen hundred and sixteen.

(2) All such enactments relating to income tax, including super-tax and the said additional income tax, as were in force with respect to the duties of income tax granted for the year beginning on the sixth day of April nineteen hundred and sixteen shall have full force and effect with respect to any duties of income tax hereby granted.

16 & 17 Vict.
c. 34.

(3) The annual value of any property which has been adopted for the purpose either of income tax under Schedules A. and B. in the Income Tax Act, 1853, or of inhabited house duty, for the year ending on the fifth day of April nineteen hundred and seventeen, shall be taken as the annual value of such property for the same purpose for the next subsequent year; provided that this subsection—

(a) so far as respects the duty on inhabited houses in Scotland, shall be construed with the substitution of the twenty-fourth day of May for the fifth day of April; and

(b) shall not apply to the metropolis as defined by the Valuation (Metropolis) Act, 1869.

32 & 33 Vict.
c. 67.

Continuance
of certain
relief from
income tax.

11. The provisions of sections twenty-nine, thirty, and forty-three of the Finance Act, 1916 (which give relief from income tax in certain cases for the then current income tax year), shall have effect as if herein re-enacted and in terms made applicable to the income tax year beginning on the sixth day of April nineteen hundred and seventeen:

Provided that—

(a) for the words from “and in calculating” to the end of subsection (2) of the said section thirty, there shall be substituted the words “and in calculating
“ the earned income on which relief is to be given
“ under this section the deductions required to be
“ made from earned income under subsection (2)
“ of section nineteen of the Finance Act, 1907, as
“ amended by any other Act, shall not be made
“ from the pay unless and except in so far as
“ the amount of those deductions exceeds the
“ aggregate amount of the earned income other
“ than the pay and of the unearned income”; and

(b) the said section thirty, as so amended, shall apply to any person who during the current income tax year has served, or serves, for not less than three months as master or a member of the crew of any ship or fishing boat as it applies to any of the persons mentioned in that section.

12.—(1) Section thirteen of the Finance Act, 1914 (Session 2) (which gives relief in respect of diminution of income due to war), shall apply to income tax (including super-tax) for the current income-tax year, but with the substitution, as regards postponed super-tax, of the first day of January nineteen hundred and nineteen for the first day of January nineteen hundred and sixteen as the date on which the postponed super-tax is to become payable.

Continuance
of relief under
5 Geo. 5. c. 7.
s. 13.

(2) Any payment of super-tax for any year (hereinafter referred to as the year of charge) which has been postponed under section thirteen of the Finance Act, 1914 (Session 2), as continued by section twenty of the Finance Act, 1915, and section twenty-eight of the Finance Act, 1916, or which has been postponed and further postponed under those sections, may be further postponed until the first day of January nineteen hundred and nineteen, if the individual from whom the payment is due proves to the satisfaction of the Special Commissioners that his actual income from all sources for the current income-tax year is or will be less than two-thirds of the income on which he was liable to be charged to super-tax for the year of charge.

13.—(1) If any individual who has been assessed or charged to income tax or has paid income tax either by deduction or otherwise, claims and proves in manner prescribed by the Income Tax Acts that his total income from all sources, although exceeding one hundred and thirty pounds does not exceed seven hundred pounds, and that for the year for which the income tax is charged he has the custody of and maintains at his own expense a child or children under the age of sixteen years at the commencement of that year and that neither he nor any other individual is entitled to relief from income tax in respect of the same child or children by virtue of section sixty-eight of the Finance (1909–10) Act, 1910, as amended by any subsequent enactment, or if any other individual is entitled to such relief that that other individual has relinquished his claim thereto, he shall be entitled in respect of every such child to relief from income tax equal to the amount of the income tax upon twenty-five pounds.

Relief from
income tax
in respect
of adopted
children.

(2) The provisions of subsections (2) and (3) of section sixty-eight of the Finance (1909–10) Act, 1910, as amended by any subsequent enactment, shall apply to the relief given under this section, to the manner of claiming such relief, and to the proof to be given with respect thereto, as if they were herein re-enacted and in terms made applicable to this section.

14.—(1) Where in pursuance of the provisions of any will or settlement any income arising from any fund is accumulated for the benefit of any person contingently on his attaining some specified age or marrying, and the aggregate amount in any income tax year of that income and the income from any other fund subject to the like trusts for accumulation and of the total income of that person from all sources (hereinafter referred to as "the aggregate yearly income") is of such an amount only as

Relief from
income tax
in respect of
income accu-
mulated under
trusts.

would entitle an individual either to total exemption from income tax or to relief from income tax, that person shall, on making a claim for the purpose within three years after the end of the income tax year in which the contingency happens, be entitled, on proof of the claim in manner prescribed by the Income Tax Acts, to have repaid to him on account of the income tax which has been paid in respect of the income during the period of accumulation a sum equal to the aggregate amount of relief to which he would have been entitled if his total income from all sources for each of the several years of the said period had been equal to the aggregate yearly income for that year, but in calculating that sum a deduction shall be made in respect of any relief already received.

(2) All the provisions of the Income Tax Acts which relate to claims for exemption, relief, or abatement, or the proof to be given with respect to those claims, shall apply to claims for relief under this section and the proof to be given with respect to those claims.

Application of s. 22 of the Finance Act, 1915, to interest on advances by members of stock exchanges and discount houses.

15. Section twenty-two of the Finance Act, 1915 (which provides for the repayment in certain cases of income tax on interest paid to banks), shall, subject as hereinafter mentioned, apply to interest (not being yearly interest) payable in the United Kingdom on an advance from a person who in the opinion of the Commissioners of Inland Revenue is bonâ fide carrying on business as a member of a stock exchange in the United Kingdom or from any person who in the opinion of the said Commissioners is bonâ fide carrying on the business of a discount house in the United Kingdom, as it applies to interest payable on an advance from a bank:

Provided that no repayment shall be made under the said section as applied by this section unless the Commissioners of Inland Revenue are satisfied that the interest has been or will be brought into account in the return made or to be made for the purposes of income tax by the person making the advance.

Repayment of income tax on sums deducted from profits.

16.—(1) Where a deduction on account of any of the matters specified in section thirty-nine of the Finance Act, 1916 (which provides for the repayment of income tax on sums deducted from profits) has been allowed for the purposes of excess profits duty in calculating the profits of a controlled establishment for any period during which it is subject to control, that section shall, subject to the necessary modifications, apply as it applies where a deduction has been allowed in calculating those profits for the purposes of Part II. of the Munitions of War Act, 1915:

5 & 6 Geo. 5. c. 54.

Provided that a repayment of income tax shall not be allowed under this section and also under the said section thirty-nine in respect of the same deduction.

(2) Subsection (3) of section twenty-six of the Finance Act, 1907, shall apply, with the necessary modifications, with respect to any repayment of income tax under the said section thirty-nine or this section, as it applies with respect to deductions for wear and tear.

7 Edw. 7. c. 13.

17.—(1) Where any securities have been issued in connection with any Government loan raised for the purposes of the present war and such securities were issued subject to the condition that the interest thereon should be exempt from assessment to income tax, but should not be exempt from super-tax, the interest on the securities shall be exempt from assessment to income tax but shall not be exempt from super-tax.

Provisions as to interest free from income tax.

(2) The interest on any such securities shall, for the purposes of super-tax and for the purposes of any relief from income tax which depends on the total income from all sources, be treated as part of the total income from all sources as if the amount actually received represented net income after deduction of income tax at the highest current rate; but nothing in this provision shall be construed as entitling any person to the repayment of any sum on account of income tax on the ground that he is to be treated as having paid income tax at such rate as aforesaid on the interest so exempt.

18.—(1) Section sixty-four of the Finance Act, 1916 (which relates to the payment of interest on Exchequer bonds without deduction of income tax), shall apply and shall be deemed always to have applied to registered or inscribed stock of the five per cent. War Loan, 1929-1947, and to any stock which has been converted into that stock or into stock of the four per cent. War Loan, 1929-1942, as it applies to Exchequer bonds.

Provisions as to interest payable without deduction of income tax.

(2) Section forty-one of the Finance Act, 1916, is hereby repealed.

19. Where interest on any securities issued in connection with any Government loan raised for the purposes of the present war is paid without deduction of income tax, any person by whom such interest is paid, and any person who receives on behalf of any other person (being a registered or inscribed holder of any such security) any interest so paid without deduction of income tax, and any person who has acted as intermediary in the purchase of any securities on which the interest is payable without deduction of income tax, shall, on being so required by the Commissioners of Inland Revenue, furnish to them—

Returns as to interest, &c. paid without deduction of income tax.

- (a) the names and addresses of the persons to whom such interest has been paid or on whose behalf such interest has been received, or on whose behalf such securities have been purchased;
- (b) the amount of the interest so paid or received, or the amount of the securities so purchased.

PART III.

EXCESS PROFITS DUTY.

20.—(1) The Finance (No. 2) Act, 1915 (in this Part of this Act referred to as the principal Act), shall, so far as it relates to excess profits duty, apply, unless Parliament otherwise determines, to any accounting period ending on or after the

Continuance and increase of rate of excess profits duty.

first day of August nineteen hundred and seventeen and before the first day of August nineteen hundred and eighteen, as it applies to accounting periods ended after the fourth day of August nineteen hundred and fourteen and before the first day of August nineteen hundred and seventeen.

(2) Section thirty-eight of the principal Act shall, as respects excess profits arising in any accounting period commencing on or after the first day of January nineteen hundred and seventeen, have effect as if eighty per cent. of the excess were substituted as the rate of duty for sixty per cent. of the excess, or, in the case of an accounting period which commenced before that date but ends after that date, as if eighty per cent. were substituted for sixty per cent. as respects so much of the excess as may be apportioned under this Act to the part commencing on that date.

In calculating any repayment or set off under subsection (3) of section thirty-eight of the principal Act any amount to be repaid or set off on account of a deficiency or loss arising in any accounting period commencing on or after the first day of January nineteen hundred and seventeen, or, in the case of an accounting period which has commenced before that date but ends after that date, on account of so much of the deficiency or loss as may be apportioned under this Act to the part commencing on that date, shall be calculated by reference to duty at the rate of eighty per cent.

Any additional duty payable by virtue of this section in respect of a past accounting period may be assessed and recovered notwithstanding that duty has already been assessed in respect of that period.

(3) It shall be the duty of every person chargeable to excess profits duty, if he has not previously given notice of his liability to be charged with excess profits duty in respect of any accounting period, to give notice to the Commissioners within two months after the termination of any accounting period in respect of which he is chargeable, or, if the accounting period terminated before the passing of this Act, within one month after the passing of this Act.

If any person fails to give the notice required by this provision he shall be liable on summary conviction to a fine not exceeding one hundred pounds, and to a further fine not exceeding ten pounds a day for every day during which the offence continues after conviction therefor.

Increase of
rate of excess
mineral rights
duty.

21. Section forty-three of the principal Act (which relates to excess mineral rights duty) shall have effect as if eighty per cent. of the excess were substituted as the rate of duty for sixty per cent. for any accounting year commencing on or after the first day of January nineteen hundred and seventeen, or, in the case of an accounting year which commenced before that date but ends after that date, as if eighty per cent. were substituted for sixty per cent. as respects so much of the excess as may be apportioned under this Act to the part commencing on that date, and any additional duty may be recovered accordingly :

Provided that where it is shown to the satisfaction of the Commissioners that the amount payable as rent under any lease or agreement for a lease for any accounting year in respect of which or any part of which excess mineral rights duty is payable at the rate of eighty per cent. is not greater than the average amount payable as rent for the two pre-war years the prices in which are selected by the taxpayer for the purpose of determining the pre-war rent values of the rent for the accounting year, or would be reduced below that amount by the payment of excess mineral rights duty, no excess mineral rights duty or, as the case may be, such an amount of excess mineral rights duty only as will reduce the amount payable as rent for the accounting year to the said average amount, shall be paid for that accounting year.

22.—(1) In computing the excess profits duty of any trade or business which consists wholly or partly of the business of shipping the provisions of subsection (3) of section thirty-eight of the principal Act (which relate to the repayment or setting off of duty on account of deficiencies or losses) shall not apply in relation to any deficiency or loss in any accounting period commencing on or after the first day of January nineteen hundred and seventeen, and in the case of an accounting period which has commenced before that date but ends after that date, shall not apply in relation to so much of the deficiency or loss as may be apportioned under this Act to the part commencing on that date:

Special provisions as to deficiencies and losses of shipping concerns.

Provided that—

- (a) where the shipping business is carried on merely as ancillary to the principal trade or business, the provisions of this section shall not apply;
- (b) where the trade or business carried on does not consist wholly of shipping, and the part which does not consist of shipping is not merely ancillary to the business of shipping, such apportionment of any deficiency or loss shall be made by the Commissioners as may be necessary to limit the application of this section to such part of the business as consists of shipping; and
- (c) if in any such accounting period as aforesaid there has been a loss or the profits have not reached the point which would have involved liability to excess profits duty if the percentage standard had been adopted, the same amount shall, as respects the deficiency or loss or so much thereof as is affected by this section, be repaid or set off under subsection (3) of the said section thirty-eight as would have been repaid or set off if the percentage standard had been adopted.

(2) Any appeal under subsection (5) of section forty-five of the principal Act on any question arising under this section shall be to the Special Commissioners.

(3) In this section the expression "business of shipping" means the business carried on by an owner of ships, and for the purposes of this definition the expression "owner" includes any charterer to whom a ship is demised.

Relief in
respect of
Colonial excess
profits duty.

23.—(1) His Majesty may by Order in Council declare—

(a) that under the law in force in any of His Majesty's possessions excess profits duty is chargeable in respect of any profits in respect of which excess profits duty is also payable in the United Kingdom; and

(b) that arrangements have been made with the Government of any such possession whereby, in respect of any profits, only the duty which is higher in amount is to be payable, and the amount of such duty is to be apportioned between the respective Exchequers in proportion to the amount of duty which would otherwise have been payable in the United Kingdom and in that possession respectively.

(2) Where any such Order in Council is made, then, if the Commissioners are satisfied that any case is one to which any such arrangements relate, they may, in lieu of any relief granted under paragraph 4 of Part I. of the Fourth Schedule to the principal Act, allow or make such remission or adjustments of duty as may be necessary to give effect to such arrangements, so, however, that the effect of such remission or adjustments shall not be less favourable than the relief in lieu of which they are allowed or made.

(3) The obligation as to secrecy imposed by subsection (8) of section forty-five of the principal Act shall not prevent the disclosure to the Government of the possession concerned of such facts as may be necessary to enable such arrangements as aforesaid to be carried into effect.

Further provisions with
respect to
munitions
Exchequer
payments.

24.—(1) The provisions of section four of the Munitions of War Act, 1915, with respect to munitions Exchequer payments shall not apply to any profits arising after the thirty-first day of December nineteen hundred and sixteen or apportioned under this Act to the period after that date.

(2) Munitions Exchequer payments arising on or before the thirty-first day of December nineteen hundred and sixteen, or apportioned under this Act to the period down to and including that date shall, after the passing of this Act, be assessed and collected, or, if already assessed but not collected, collected, by the Commissioners, and shall be computed by them in accordance with the provisions of that Act and the rules made thereunder, and the Commissioners shall for those purposes have all the powers of the Minister of Munitions, including the power of making rules.

For the purposes of such assessment and collection, the provisions for the time being in force with respect to the assessment and collection of excess profits duty (including provisions

as to returns and penalties, but excluding provisions imposing any charge of duty or as to the computation of duty) shall apply, and rules may be made by the Commissioners accordingly, and the provisions of section forty-eight of the Finance Act, 1916, relating to the adjustment of excess profits duty and munitions Exchequer payments, shall apply subject to such modifications as may be necessary in consequence of the transfer of powers effected by this subsection.

Any rules made by the Commissioners may specify matters which may be referred to the Minister, or to a referee or board of referees appointed by him, and prescribe the manner in which such cases are to be referred.

(3) For the purposes of subsection (3) of section five of the said Act, any establishments in which the same person has a controlling or preponderating interest may, if the Commissioners so determine, be treated as belonging to the same owner.

(4) Subsections (2) and (3) of section forty-nine of the Finance Act, 1916 (which relate to the recovery of payments in respect of increased directors' fees), shall apply for the purposes of munitions Exchequer payments as they apply for the purposes of excess profits duty, with the necessary modifications.

25. Notwithstanding anything contained in section forty-two of the principal Act (which provides for the reference to the Board of Referees of questions as to percentages, &c.) the Commissioners may, if they think fit, refer to the Board of Referees any application made under that section as respects a class of trade or business, although the application may relate to matters already decided by that Board, and the Board may, if they think fit, on cause being shown by additional evidence or otherwise, re-open the case and make any order which they could have made on an application relating to matters not already decided by them, and may revise any order previously made by them affecting that class of trade or business; and any such order or revised order shall, as from such date as may be specified therein, apply and have effect in lieu of any previous order relating to the same matter.

Additional powers of reference to referees.

26. In the application of Part III. of the principal Act to excess profits duty for any accounting period ending after the thirty-first day of December nineteen hundred and sixteen, the following provisions shall have effect:—

Amendments of law as respects accounting periods ending after December 31st, 1916.

- (1) In ascertaining the deduction to be made from the profits of the accounting period in respect of increased capital, or the pre-war standard of profits in cases where there has not been one pre-war trade year, three per cent. shall be added to the statutory percentage per annum; and, accordingly, in subsection (1) of section forty-one of, and paragraph 4 of Part II. of the Fourth Schedule to, the principal Act, the expression "statutory percentage" shall be taken to mean the statutory percentage as so increased:

- (2) The statutory percentage shall, in the case of a trade or business not carried on or owned by a company or other body corporate, be taken to be eight per cent. instead of seven per cent.; and accordingly subsection (2) of section forty of the principal Act shall have effect as though eight per cent. were substituted for seven per cent.:

Provided that nothing in this provision shall affect the amount of the statutory percentage for the purposes of subsection (2) of section forty-one of the principal Act:

- (3) Any increase of the statutory percentage under this section shall be in addition to any increase of the statutory percentage which has, before the passing of this Act, been made under section forty-two of the principal Act:
- (4) Where the pre-war standard of profits of any trade or business does not exceed five hundred pounds, and the profits of the accounting period, after any adjustment in respect of increased or decreased capital, are less than two thousand pounds, subsection (1) of section thirty-eight of the principal Act shall have effect as though for two hundred pounds there were substituted two hundred pounds with the addition of one-fifth of the amount by which the profits of the accounting period are less than two thousand pounds; so, however, that if there has been a loss in the accounting period, then for the purpose of ascertaining the amount of any repayment or set-off under the principal Act the addition allowed shall be such as if there had been neither loss nor profit, and that where the accounting period is a period of less than a year, this provision shall have effect as if there were substituted for two thousand pounds and two hundred pounds respectively a proportionately reduced amount:

The foregoing provisions shall apply where the pre-war standard of profits exceeds five hundred pounds, subject to this qualification, that the amount of the addition shall be reduced by the amount by which the pre-war standard exceeds five hundred pounds:

- (5) Where the Commissioners are satisfied—

(a) that in connection with any trade or business two or more distinct and independent industries are carried on in separate establishments, and with books kept in such a manner that the profits in respect of each industry can be readily ascertained; and

(b) that in any year by reference to which the pre-war standard of profits is calculated a loss has

been sustained in respect of any one or more of such industries ;

the Commissioners may, if they think fit, in computing the profits standard, disregard that loss :

- (6) Where the Commissioners are satisfied that during the last six pre-war trade years, owing to trading losses—

(a) any former assets of any trade or business have ceased to form part of the assets of that trade or business ; or

(b) the money borrowed in respect of the trade or business or the debts of the trade or business have increased ;

the Commissioners shall, for the purpose of ascertaining the capital of the trade or business in any case where the percentage standard is adopted, compute the capital as though there had been no such loss of assets or increase of borrowed money or debts :

- (7) Six years shall be substituted for three years in subsection (4) of section forty-one of the principal Act (which provides for the adjustment of excess profits duty in respect of unremunerative capital).

- (8) The excess profits duty of a society registered under the Industrial and Provident Societies Acts may, if the society so requires, instead of being computed as provided for by paragraph 10 of Part I. of the Fourth Schedule to the principal Act, be computed as follows :—

The amount of excess profits (if any) arising on commercial transactions with non-members shall be separately ascertained in accordance with the general principles of the principal Act, and there shall be added thereto the amount (if any) by which the profit or surplus arising from transactions with members per pound sterling of turnover in the accounting period exceeds the like profit or surplus in the pre-war trade year or average of years taken as the basis of computation for the purpose of the pre-war standard of profits in respect of such commercial transactions as aforesaid, multiplied by the number of pounds sterling of turnover in the accounting period ; and excess profits duty shall be charged on the sum of those amounts :

Provided that the method of computation hereby laid down shall not be adopted for ascertaining the amount of any deficiency or loss for the purposes of subsection (3) of section thirty-eight of the principal Act, nor shall any duty computed under this provision be repaid or remitted by reason of a deficiency or loss in any other accounting period computed as provided for by the said paragraph 10.

Regulations made by the Commissioners for the purpose of carrying the foregoing provision into effect may provide for defining and ascertaining turnover and the profit or surplus per pound sterling thereof, and for the application of that provision to new societies, and for extending, subject to such modifications as may be prescribed, to cases where duty is computed under that provision any of the general principles of the principal Act as to relief from duty.

Apportionment of accounting periods and years.

27. Where part of an accounting period or of an accounting year, or of any period in respect of part of which munitions Exchequer payments are chargeable, is after, and part before, the beginning of the first day of January nineteen hundred and seventeen, the total excess profits and any deficiencies or losses arising in any such accounting period, and the total excess rent for any such accounting year, and the total profits in respect of part of which munitions Exchequer payments are chargeable, shall be apportioned between the time up to, and the time after, that date in proportion to the number of months or fractions of months before and after that date respectively.

Interpretation

28. In this Part of this Act references to the principal Act, or to the Munitions of War Act, 1915, or to any provisions of those Acts, shall be construed as references to those Acts or provisions as amended by any subsequent enactment, and the expression "the Commissioners" means the Commissioners of Inland Revenue, and the expression "munitions Exchequer payments" in this Part of this Act and in any other enactment, includes any sums payable into the Exchequer under section four of the Munitions of War Act, 1915, on account of the excess of the net profits of a controlled establishment.

PART IV.

DEATH DUTIES.

Remission of death duties in cases of members of the crews of vessels killed in war.
63 Vict. c. 7.
4 & 5 Geo. 5.
c. 76.

29. Section fourteen of the Finance Act, 1900, as extended by the Death Duties (Killed in War) Act, 1914, and section forty-six of the Finance (No. 2) Act, 1915, shall apply in the case of a master or a member of the crew of a ship or a fishing boat dying, whether before or after the passing of this Act, from causes arising out of the operations of the present war and within twelve months from the occurrence to which death is due, in like manner as it applies in the case of a person dying from such wounds, accident, or disease as are mentioned in the said section fourteen, with this qualification, that the Treasury shall act on the recommendation of the Board of Trade instead of on that of the Secretary of State or the Admiralty.

PART V.

STAMPS.

30.—(1) The following exemption shall be added to the exemptions under the head “Letter or power of attorney and “commission, factory, mandate, or other instrument in the “nature thereof,” in the First Schedule to the Stamp Act, 1891, namely:—

Exemption from stamp duty of powers of attorney for the sale, &c. of Government stock.
54 & 55 Vict. c. 39.

- (4) Letter or power of attorney for the sale, transfer, or acceptance of any of the Government or parliamentary stocks or funds.

(2) Section eighty-one of the said Act and subhead (5) of the head “Letter or power of attorney, and commission, factory, mandate, or other instrument in the nature thereof,” in the First Schedule to the said Act, and section eleven of the Finance Act, 1895, are hereby repealed.

58 & 59 Vict. c. 16.

(3) This section shall be deemed to have been in force as from the twenty-sixth day of March nineteen hundred and seventeen.

PART VI.

NATIONAL DEBT AND LOANS.

31. In the financial year ending the thirty-first day of March nineteen hundred and eighteen, that portion of the permanent annual charge for the national debt which is not required for the annual charges directed by the National Debt and Local Loans Act, 1887, or any other Act, to be paid out of that charge, shall not be paid.

Suspension of new sinking fund.

50 & 51 Vict. c. 16.

32.—(1) The Treasury shall by regulations establish a depreciation fund in connection with the five per cent. war loan 1929–1947 and the four per cent. war loan 1929–1942 in accordance with the terms upon which those loans were raised, and may issue out of the Consolidated Fund or the growing produce thereof from time to time such sums as may be required for the purposes of that fund:

Depreciation fund.

Provided that the aggregate sums so issued shall at no time exceed an amount equal to one-eighth of one per cent. per month, calculated as from the seventeenth day of February nineteen hundred and seventeen, of the total nominal value of the stock and bonds of those loans originally created whether as a result of subscriptions or conversions.

(2) The regulations may provide—

- (a) for the manner in which the fund is to be applied, including the purchase for cancellation from any Government account of stock or bonds purchased between the said seventeenth day of February and the passing of this Act in anticipation of the establishment of the fund; and
- (b) for the cancellation of any stock or bonds to the purchase of which the fund has been applied.

(3) The Treasury may, if they think fit at any time, for the purpose of providing for the issue of sums out of the Consolidated Fund under this section or for the repayment to that fund of all or any part of the sums so issued, borrow money in any manner in which money is authorised to be borrowed for the purposes of the present war; and all sums so borrowed shall be paid into the Exchequer.

Payment of
expenses of
redemption of
war loan
securities.

4 & 5 Geo. 5.
c. 60.
5 & 6 Geo. 5.
c. 55.
6 & 7 Geo. 5.
c. 67.

Power to
transfer war
stock and
bonds in satis-
faction of
death duties
and excess
profits duties.

33. Any expenses incurred in connection with the redemption of any securities issued under the War Loan Act, 1916, shall be charged and paid out of the Consolidated Fund or the growing produce thereof in the same manner as expenses incurred in connection with the redemption of securities issued under the War Loan Act, 1914, and the War Loan Act, 1915; and subsection (5) of section one of the War Loan Act, 1916, shall have effect accordingly.

34.—(1) The Treasury may by regulations prescribe as securities to be accepted in payment of any death duty or excess profits duty or munitions Exchequer payments any stock or bonds forming part of any issue made for raising money in connection with the present war, and any such regulations may specify different securities in respect of different duties and payments, and may prescribe the limitations and conditions subject to which any securities will be accepted, and any person from whom any sum is due on account of any death duty or excess profits duty or munitions Exchequer payments may pay that sum or any part thereof by means of the transfer, in accordance with and subject to the provisions of such regulations as aforesaid, to the Commissioners of Inland Revenue of an appropriate amount (ascertained as hereinafter mentioned) of any stock or bonds authorised by the regulations.

(2) Any stock or bonds so transferred shall be accepted by the Commissioners of Inland Revenue in satisfaction of the amount.

(3) Any stock or bonds so transferred shall be deemed to mature for payment on the date of the transfer, but the principal payable on maturity shall be deemed to be a sum equal to the price of issue, and the principal and interest of the stock or bonds when received by the Commissioners of Inland Revenue shall be brought to account as revenue in such manner as the Treasury may direct.

(4) Stock or bonds so transferred shall for the purposes of this section be valued at the price of issue with the addition of any interest accrued due at the date of transfer but then remaining unpaid, after deducting the amount of any interest which may be receivable by the transferor after that date:

Provided that in the case of excess profits duty and munitions Exchequer payments—

(a) if the transfer takes place after the date when the duty or payments become payable there shall be deducted

from the value so attributed to the stock or bonds the amount of any interest which accrued due on the stock or bonds after that date ; and

- (b) if the transfer takes place before that date, a sum equal to the value thereof so ascertained as aforesaid shall be deemed to be money deposited under section fifty-four of the Finance Act, 1916, and interest thereon shall be allowed in accordance with that section.

(5) For the purposes of this section interest shall be deemed to accrue from day to day.

(6) Section sixty-one of the Finance Act, 1916, is hereby repealed.

35.—(1) It shall be lawful and shall be deemed always to have been lawful for a trustee to borrow for the purpose of subscribing to or investing in any securities which have been or may be issued in connection with any Government loan raised for the purpose of the present war, and a trustee shall not be liable for any loss resulting from any borrowing so authorised or from any subscription to or investment in such securities or the sale of any securities for the purpose of such subscription or investment, or from the exercise of any option to convert any securities into securities so issued, whether such borrowing, subscription, investment or sale, or the exercise of such option, was before or after the passing of this Act ; and trustees and other persons acting in any fiduciary character are hereby expressly authorised to exercise without the consent of any other person, such powers of borrowing, subscription, investment, sale, or conversion, notwithstanding anything in any instrument creating the trust :

Power of trustees, &c. to borrow and invest in war securities.

Provided that—

- (a) In the case of transactions after the passing of this Act, a trustee shall before borrowing for the purpose aforesaid give notice of his intention so to do to the persons for the time being beneficially entitled to the income of the trust fund and the amount borrowed shall not exceed the value for the time being of the trust fund ;
- (b) For the purpose of transactions after the passing of this Act the power to borrow for the purpose of investing in any such securities shall be deemed not to include a power to borrow for the purpose of purchasing any such securities at any time after the subscription list has been closed, or, in the case of any such securities which are issued on application from day to day, after the issue thereof has been discontinued.

(2) This section shall apply to any officer or department who holds funds on account of or for the benefit of any persons or class of persons as part of, or in consequence of, the duties of the

officer or department, but shall not apply to any trustee under an implied or constructive trust, except a resulting trust arising on the determination or failure of an express trust.

(3) The foregoing provisions of this section, so far as they relate to the exercise of such powers as aforesaid before the passing of this Act, shall apply to local and other public authorities, notwithstanding any limitations on their powers, in like manner as they apply to trustees.

(4) It is hereby declared that the power conferred by subsection (6) of section one of the War Loan Act, 1916, on companies and bodies of persons and persons responsible for the direction and management of a company or body of persons to hold government securities purchased in pursuance of the powers conferred by that subsection is not limited to the continuance of the present war and a period of twelve months thereafter.

The powers conferred by the said subsection shall include, and shall be deemed as from the commencement of the war to have included, a power on the part of a company or body of persons and of persons responsible for the direction or management of the company or body to borrow, notwithstanding any such limitations as are mentioned in that subsection, for the purpose of investing in or purchasing Government securities in accordance with that subsection.

Power to
abolish certain
fees.
33 & 34 Vict.
c. 71.

36. The power of the Treasury under section thirty-seven of the National Debt Act, 1870, to reduce the fees payable in respect of stock certificates mentioned in the Third Schedule to that Act shall include and shall be deemed to have included a power to abolish any such fees.

Provisions
facilitating
dealings with
Government
stock.

37.—(1) For the purpose of facilitating transactions in connexion with Government stock, the Treasury may, in conjunction with the Bank of England and the Bank of Ireland, make regulations with respect to the following matters, that is to say :—

- (a) for providing that any document relating to Government stock may, on the demand of any person who from any cause is unable to write, be validly executed on his behalf by a notary public, commissioner for oaths, or justice of the peace ;
- (b) for enabling stockholders to be described in the books of the Bank as trustees, and either as trustees of any particular trust or as trustees without qualification, and for authorising the Bank to act on powers of attorney granted by stockholders so described ;
- (c) for enabling the Bank to open and keep accounts of Government stock in their books under the official description of a person holding any office or position, and for providing by what person any document relating to Government stock standing on such an

account may be validly executed, and what evidence shall be sufficient of the identity of that person ;

- (d) for enabling stockholders, whether or not trustees, if a request in that behalf is made in the prescribed manner by all the stockholders, to act by a majority for the purpose of transferring Government stock or giving authority for the payment or accumulation of dividends or the payment of redemption moneys ;
- (e) for determining what documents relating to Government stock shall require attestation, and for providing that any such document requiring attestation shall be deemed to be sufficiently attested if attested by one credible witness, and that any document relating to Government stock shall in the prescribed cases be deemed to be sufficiently executed by an individual if under hand only without seal, and in the case of a corporate body not having a common seal, if executed by the prescribed persons ;
- (f) for applying the provisions of section eighteen of the National Debt Act, 1870, with or without modification, to the case of persons claiming payment of any money payable on the redemption of Government stock ;
- (g) for making provision as to the manner in which and the conditions subject to which a transfer of stock may be made from England to Ireland, or from Ireland to England ;
- (h) for providing that in the prescribed circumstances Government stock may, on the death of a sole or last surviving stockholder, be transferred and the dividends thereon and the moneys payable on the redemption thereof received in such manner and by such persons as may be prescribed.

(2) Any regulations made in pursuance of this section shall have effect as if enacted in this Act and notwithstanding any rule of law or any provision in any other Act to the contrary, and all transfers of Government stock and payments and accumulations of dividends thereon, and payments of any moneys payable in redemption thereof, and all other things made, done, or permitted, in pursuance of and subject to the provisions of any such regulations shall be deemed to be properly made, done, and permitted respectively :

Provided that—

- (a) nothing in any such regulations shall as between any trustees or as between any trustees and the beneficiaries under a trust be deemed to authorise the trustees to act otherwise than in accordance with the rules of law applying to the trust and the terms of the instrument constituting the trust, or affect the mutual rights of joint stockholders ; and

(b) neither the Bank nor any person acquiring any interest in any Government stock shall by reason only of any entry in the books of the Bank in relation to any Government stock or any stockholder, or of anything in any document relating to Government stock, be affected with notice of any trust, or of the fiduciary character of any stockholder or of any fiduciary obligation attaching to the holding of any Government stock.

(3) Before any regulations under this section come into force they shall be laid before each House of Parliament for a period of not less than thirty days during which the House is sitting, and if either of those Houses before the expiration of those thirty days presents an address to His Majesty against the regulations or any of them no further proceedings shall be taken thereon without prejudice to the making of any new regulations.

(4) It is hereby declared that stock or registered bonds issued under the War Loan Acts, 1914 to 1916, and any other Act authorising the raising of any sum for the purposes of the present war, shall be transferable in like manner as other stock to which the National Debt Act, 1870, applies and shall be subject to the provisions of that Act and any enactment amending that Act, so far as is consistent with the tenor of the Act under which the loan is raised and save as is otherwise provided by any other Act.

(5) In this section, unless the context otherwise requires—

The expression “Bank” means the Bank of England or the Bank of Ireland, as the case may be;

The expression “stockholders” means the persons entered in the books of the Bank as the proprietors of any Government stock, and includes persons entitled to be so entered, and the legal personal representatives of a sole or last surviving stockholder;

The expression “Government stock” means any stock or bonds which are for the time being transferable in the books of the Bank of England or the Bank of Ireland under the National Debt Act, 1870, or by deed under section seventeen of the Finance Act, 1911;

The expression “document relating to Government stock” means any power of attorney or other document made by way of or in connection with the transfer of Government stock, or in connection with the payment or accumulation of dividends thereon, or the payment of any money payable on the redemption thereof;

The expression “books,” includes registers;

The expression “trustees” includes executors and all persons holding a fiduciary position, and the expression “beneficiaries” includes in relation to persons holding a fiduciary position all persons entitled to require due

observance and performance of the duties involved in the holding of that position ;
The expression " prescribed " means prescribed by regulations made under this section.

PART VII.

GENERAL.

38.—(1) Part I. of this Act, so far as it relates to duties of Customs, shall be construed together with the Customs Consolidation Act, 1876, and any enactments amending that Act, and so far as it relates to duties of Excise shall be construed together with the Acts which relate to the duties of Excise and the management of those duties. Construction and short title.

Part II. of this Act shall be construed together with the Income Tax Acts, 1842 to 1853, and any other enactments relating to income tax, and those enactments and Part II. of this Act are in this Act referred to as the Income Tax Acts.

Part III. of this Act shall be construed together with Part III. of the Finance (No. 2) Act, 1915.

Part IV. of this Act shall be construed together with the Finance Act, 1894. 57 & 58 Vict. c. 30.

(2) This Act may be cited as the Finance Act, 1917.

SCHEDULES.

FIRST SCHEDULE.

Section 4 (3).

RATES OF DRAWBACK ON TOBACCO.

PART I.

		<i>s.</i>	<i>d.</i>
Cigars	- - - - - the lb.	8	4
Cigarettes	- - - - - „	8	2
Cut, roll, cake, or other manufactured tobacco	- - „	8	0
Snuff (not being offal snuff)	- - „	7	8
Stalks, shorts, or other refuse of tobacco (including offal snuff)	- - „	7	6

PART II.

Cigars	- - - - - the lb.	7	3½
Cigarettes	- - - - - „	7	1¾
Cut, roll, cake, or other manufactured tobacco	- - „	7	0
Snuff (not being offal snuff)	- - „	6	8½
Stalks, shorts, or other refuse of tobacco (including offal snuff)	- - „	6	6¾

Section 7 (1).

SECOND SCHEDULE.

EXCISE LIQUOR LICENCES ENTITLED TO RELIEF.

The following licences specified in the First Schedule to the Finance (1909-10) Act, 1910 :—

Wholesale dealers' licences for spirits, beer, or wine.

Retailers' on-licences for spirits, beer, or wine.

Retailers' off-licences for spirits, beer, or wine.

Passenger vessel licences taken out annually.

CHAPTER 32.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [2nd August 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Grants for
public works.

1.—(1) For the purpose of local loans, there may be issued by the National Debt Commissioners the following sums, namely :—

(a) For the purpose of loans by the Public Works Loan Commissioners, any sum or sums not exceeding in the whole the sum of one million pounds :

(b) For the purpose of loans by the Commissioners of Public Works in Ireland, any sum or sums not exceeding in the whole the sum of three hundred thousand pounds.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation, and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

50 & 51 Vict.
c. 16.

Certain debts
not to be
reckoned as
assets of local
loans fund.

2. Whereas it is expedient that the principal of the several local loans specified in the Schedule to this Act should, to the extent specified in the last column of that schedule, not be reckoned as assets of the local loans fund established under the National Debt and Local Loans Act, 1887 ; therefore, the principal of the said loans shall to that extent be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

Remission of
arrears of
principal and
interest in

3. Whereas in pursuance of an agreement made in the year eighteen hundred and ninety-two the sum of ten thousand pounds was advanced by the Public Works Loan Commissioners to the